exceptional and grave circumstances of both the crime as well as the criminal should be taken into consideration.

Impact of the Judgement: This judgement led to the laying down of the doctrine of 'rarest of rare cases' for awarding the death penalty. This doctrine influenced the later judgements delivered by the Supreme Court in various subsequent cases.

Minerva Mills Case (1980)

Name of the Case	: Minerva Mills vs. Union of India
Year of Judgement	: 1980
Popular Name	: —
Related Topic/Issue	: Basic structure of the constitution
Related Article/Schedule	: 31C & 368

Supreme Court Judgement: It invalidated Clauses (4) and (5) of Article 368 which were inserted by the 42nd Amendment Act (1976). Similarly, the amendment made to Article 31C by the 42nd Amendment Act (1976) was also declared as unconstitutional. The Court said that the above changes made by the 42nd Amendment Act (1976) destroyed the basic structure of the constitution. It held the limited power of Parliament to amend the constitution, judicial review and the harmony and balance between fundamental rights and directive principles as basic features of the constitution.

Impact of the Judgement: This judgement has nullified the attempt to dilute the doctrine of the basic structure by the 42nd Amendment Act (1976). This amendment had conferred an unlimited and uncontrolled amending power on the Parliament. The Supreme Court held that the Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the constitution or to destroy its basic features. Further, this amendment also gave precedence to all directive principles over the fundamental rights conferred by Articles 14, 19 and 31[11]. The Supreme Court, in this regard, held that anything that destroys the balance between the fundamental rights and the directive principles will ipso facto destroy an essential element of the basic structure of the constitution.

Waman Rao Case (1980)

Name of the Case	: Waman Rao vs. Union of India
Year of Judgement	: 1980
Popular Name	: —
Related Topic/Issue	: Judicial review of the ninth schedule
Related Article/Schedule	: 368 & Ninth Schedule